410370038DLR0

Control Number	WIID Number	Instrument Type
410370038	2001037-000008	DLR

WESTCHESTER COUNTY RECORDING AND ENDORSEMENT PAGE
(THIS PAGE FORMS PART OF THE INSTRUMENT)
*** DO NOT REMOVE ***

THE FOLLOWING INSTRUMENT WAS ENDORSED FOR THE RECORD AS FOLLOWS:

TYPE OF INSTRUMENT DLR - DECLARATION
FEE PAGES 18 **TOTAL PAGES** 18

RECORDING FEES

STATUTORY CHARGE	$5.25
RECORDING CHARGE	$54.00
RECORD MGT. FUND	$4.75
RP 5217	$0.00
TP-584	$0.00
CROSS REFERENCE	$0.50
MISCELLANEOUS	$0.00
TOTAL FEES PAID	$64.50

TRANSFER TAXES

CONSIDERATION	$0.00
TAX PAID	$0.00
TRANSFER TAX #	

MORTGAGE TAXES

MORTGAGE DATE		
MORTGAGE AMOUNT		$0.00
EXEMPT		
YONKERS		$0.00
BASIC		$0.00
ADDITIONAL		$0.00
SUBTOTAL		$0.00
MTA		$0.00
SPECIAL		$0.00
TOTAL PAID		$0.00

SERIAL NUMBER
DWELLING

RECORDING DATE 02/14/2001
TIME 13:52:00

THE PROPERTY IS SITUATED IN WESTCHESTER COUNTY, NEW YORK IN THE:
TOWN OF OSSINING

WITNESS MY HAND AND OFFICIAL SEAL

LEONARD N. SPANO
WESTCHESTER COUNTY CLERK

Record & Return to:
GINSBURG & REDMOND
245 SAW MILL RIVER RD

HAWTHORNE, NY 10532

First American Title Ins. Co. of New York
188 East Post Road
White Plains, New York 10601
(914) 428-3433 (800) 942-1893

FIRST AMENDMENT

TO

DECLARATION OF COVENANTS, RESTRICTIONS, EASEMENTS, CHARGES AND LIENS AND BY-LAWS

FOR

SCARBOROUGH GLEN HOMEOWNERS ASSOCIATION, INC.

Premises at

Glenwood Drive
Briarcliff Manor, New York 10510

231-W-07364

Town of Ossining
Village of Briarcliff Manor
County of Westchester
Section.: 4
Block: 9
Plate: 10
Lots: 13, 14 and 14D

RECORD AND RETURN TO:
Ginsburg & Redmond, P.C.
245 Saw Mill River Road
Hawthorne, New York 10532
Attn.: Mark D. Ginsburg, Esq.

FIRST AMENDMENT TO DECLARATION OF COVENANTS, RESTRICTIONS, EASEMENTS, CHARGES AND LIENS AND BY-LAWS OF SCARBOROUGH GLEN HOMEOWNERS ASSOCIATION, INC.

This First Amendment to Declaration of Covenants, Restrictions, Easements, Charges and Liens and By-Laws (this "Amendment") is made by GINSBURG DEVELOPMENT, L.L.C., a New York limited liability company having its office at 245 Saw Mill River Road, Hawthorne, New York 10532 (the "Sponsor").

W I T N E S S E T H:

WHEREAS, a certain Declaration of Covenants, Restrictions, Easements, Charges and Liens dated September 25, 1996, was recorded in the Westchester County Clerk's Office, Division of Land Records, on September 26, 1996 in Liber 11137, Page 5 et. seq. (the "Declaration"); and

WHEREAS, the Sponsor is the current sponsor under offering plans covering the sale of condominium units constituting part of the Development (as hereinafter defined) and requiring mandatory membership in the Association; and

WHEREAS, the Declaration contains the By-Laws of the Association (the "By-Laws"); and

WHEREAS, the Sponsor wishes to further amend the Declaration and the By-Laws as set forth herein below; and

WHEREAS, no less than eighty (80%) percent of the Membership of the Association did vote in the affirmative to amend the Declaration and By-Laws as set forth herein below;

NOW, THEREFORE, Sponsor does hereby declare that the Declaration and By-Laws are hereby amended as follows:

1. Article I of the Declaration and Article II of the By-Laws are hereby amended as follows:

(a) The term "Property" in the Declaration is hereby revised to mean the land bound and described in Schedule A annexed hereto and made a part hereof.

(b) The term "Sponsor" in the Declaration and By-Laws is hereby revised to mean Ginsburg Development, L.L.C. and to include Sponsor's designee(s), any affiliate of Sponsor and any successors and/or assigns of any of the foregoing, including, without limitation, any mortgagee which has foreclosed upon the interest of Sponsor in the Property. The following shall constitute an affiliate of Sponsor: (i) a person or entity who or which owns more than 50% of the legal or

beneficial interest of Sponsor or (ii) an entity with respect to which Sponsor owns more than 50% of the legal or beneficial interest, and the respective successor and/or assigns of either of the foregoing.

(c) The terms "Recreation Phase" and "Recreational Facilities" in the Declaration and By-Laws are hereby revised to mean that portion of the Property consisting of the land designated as "Recreation Parcel" on the Site Plan and as more particularly described in Schedule B annexed hereto and made a part hereof, together with the tot lot, swimming pool, clubhouse, fenced terrace area, outdoor parking and other improvements to be constructed by Sponsor thereon and conveyed to and operated and maintained by the Association.

(d) The term "Common Areas" is hereby added to the By-Laws and shall mean (i) the portion of the land comprising the Condominiums, (ii) all installations outside the Units and located in or on the land of the Condominiums for common service such as heat, power, light, gas, telephone, television and water, (iii) all sewer, water and drainage pipes, appurtenance and facilities located outside of the buildings of the Condominiums or under the concrete slabs thereof and in or on the lands of the Condominiums, (iv) all parking areas located on the lands of the Condominiums, (v) all walks and driveways, (vi) all private roads on the Property and (vi) any portion of pipes, wires, conduits, cable TV and public utility lines which is located in one Unit and services another Unit or more than one Unit.

(e) The term "Common Elements" is hereby added to the By-Laws and shall mean the Common Elements of the Condominiums as defined in the Declaration of Condominium establishing each of the respective Condominiums (as amended).

(f) The term "Condominium(s)" in the Declaration and By-Laws is hereby revised to mean Scarborough Glen Condominium I, Scarborough Glen Condominium II, Scarborough Glen Condominium III and, as and when formed, Scarborough Glen Condominium IV, as each is more particularly described in the Declaration of Condominium establishing each of the said respective Condominiums (as amended). The term "Future Condominium(s)" in the By-Laws shall be deemed to refer to, and any of the Condominiums. The terms "Future Unit" and "Future Unit Member" in the By-Laws shall be deemed to mean the same as terms "Unit" and "Member", respectively.

(g) The term " Association Expenses" in the By-Laws shall mean the costs and expenses incurred by the Association in connection with the repair, maintenance, replacement, restoration and operation of, and any alteration, addition or improvement to, the Recreational Facilities and/or the Common Areas (including, without limitation, any costs and expenses chargeable to any of the Condominiums pursuant to any easements, covenants or agreements currently of record).

(h) The term "Site Plan" is hereby added to the Declaration and By-Laws and shall mean that certain map prepared by Charles Riley, Land Surveyor, entitled "Revised Site Plan for Ginsburg Development, L.L.C.", dated June 9, 2000, as and as hereafter may be amended, which Site Plan is to be filed in the Westchester County Clerk's Office.

(i) The term "Unsold Unit" is hereby added to the By-Laws and shall mean any Unit which has not been conveyed from the Sponsor or a designee of the Sponsor to purchaser for occupancy.

(j) All references in the By-Laws to the terms "Certificate of Membership" and "Membership Certificate" are hereby replaced by the term "Membership".

2. The following new Section is hereby added to Article III of the Declaration:

Conveyance of Association Property. At or prior to the first closing of title to a Unit in Scarborough Glen Condominium IV, Sponsor will convey to the Association fee title to the Recreational Facilities by a bargain and sale deed with covenant against grantor's acts. Upon acquiring title to the Recreational Facilities, the Association will own, operate, maintain, manage and control the improvements, facilities and other areas constructed or to be constructed thereon.

3. Article II of the Declaration and Sections 2, 4 and 5 of Article VI of the By-Laws are hereby deleted in their entirety and replaced with the following:

3.1. Membership. The Association shall have one class of membership interest. Each Unit Owner shall be entitled to one membership in the Association for each Unit owned and will automatically assume the rights and obligations of a Member in the Association upon the closing of title to such Unit Owner's Unit, whether such ownership is joint, in common, tenancy by the entirety or otherwise. Membership in the Association shall be appurtenant to, and may not be separated from, the ownership of a Unit. Ownership of a Unit shall be the sole qualification for membership in the Association. The conveyance of a Member's only Unit to another shall constitute such member's automatic withdrawal from, and resignation of membership in the Association.

3.2. Number of Members. The Association will have 136 members, consisting of the Unit Owners of the 18 Units in Scarborough Glen Condominium I, the Unit Owners of the 11 Units in Scarborough Glen Condominium II, the Unit Owners of the 9 Units in Scarborough Glen Condominium III and the Unit Owners of the 98 Units in Scarborough Glen Condominium IV.

3.3. Transfer of Membership. Membership in the Association shall be appurtenant to, and may not be transferred except in conjunction with the lawful sale or conveyance of a Unit. No Unit Owner shall be permitted to sell or convey

his or her Unit unless and until he or she shall have paid in full to the Board all unpaid Association Charges and other amounts required by the Board to be paid and theretofore assessed by the Board against such Unit. Upon such sale or conveyance, the seller of such Unit shall relinquish his or her membership in the Association and the purchaser of such Unit shall automatically become a Member, subject to this Declaration, the By-Laws and the Rules and Regulations of the Association.

3.4. Suspension of Membership. The rights of a Member or permitted lessee or occupant of a Unit, and their respective family members and guests to the use and enjoyment of the Recreational Facilities is expressly subject to a Member's payment of his or her share of Association Charges. If a Member shall be in default in the payment of the Association Charges assessed against such Member's Unit and fails to cure such default within ten (10) days after receipt of written notice thereof from the Board, the Board, in its sole discretion, shall have the option to prohibit the further use of the Recreational Facilities by such Member, permitted lessee or occupant of a Unit, and the respective family members and guests of the foregoing until such Member is reinstated in good standing in the Association, and until such Member is reinstated in good standing in the Association the Board may take such other legal action as may be permitted by applicable Law or the By-Laws. In addition to the foregoing, any Member so in default shall be ineligible to be considered for membership to the Board and all voting rights of such Member may be suspended until such time as all Association Charges together with late charges, interest and expenses, if any, are paid to the Association. The right of a Member to use the Recreational Facilities may also be suspended, after notice and a hearing, for a period not to exceed 30 days, for each violation of any Rule or Regulation. No suspension shall affect any Member's obligation to pay Association Charges.

4. Section 1 of Article IV of the Declaration is deleted in its entirety and replaced with the following:

Easements of Enjoyment of the Recreational Facilities and Common Areas. Each Member and the permitted lessees and occupants of any Unit, and their respective family members and guests shall have, in common with all Members an easement for ingress to and egress from the Recreational Facilities and the respective Common Areas of the Condominiums, together with an easement for the use and enjoyment of the Recreational Facilities and such Common Areas, subject to the terms of this Declaration, the By-Laws and the Rules and Regulations. The Board may establish a limitation on guest privileges by guests of Members or permitted lessees or occupants of Units and the Board may establish a limitation on the use of the Recreational Facilities for a party, meeting or other similar event. Except as otherwise specifically provided in this Declaration or in the By-Laws, the Board may not impose any fee for the use and enjoyment of the Recreational Facilities by Members or permitted lessees or occupants of Units and their respective family members, other than the Association Charges assessed against a

Member's Unit unless the Recreational Facilities are used for a party, meeting or other similar event.

5. Section 3 of Article IV of the Declaration is hereby amended to provide that, upon the request of the Sponsor, the Board shall execute any easement and/or right of way made pursuant to any right or reservation of right under such Section.

6. The following new Sections are hereby added to Article IV of the Declaration:

6.1 Sponsor's Easement of Enjoyment of the Recreational Facilities. Sponsor shall have an easement, on an equal basis with the Members, for so long as Sponsor owns any Unit or retains an interest in the Recreational Facilities, to use the Recreational Facilities or to permit the Recreational Facilities to be used by Sponsor's designee or any prospective purchaser of a Unit or any tenant of an Unsold Unit, in accordance with and subject to this Declaration, the By-Laws and the Rules and Regulations. In addition, Sponsor shall have the right to use the Recreational Facilities, without charge, for exhibitions or other promotional functions with respect to Sponsor's sales programs, in accordance with and subject to this Declaration, the By-Laws and the Rules and Regulations.

6.2 Easement for Use of Common Elements. The Common Elements of each of the Condominiums shall be subject to an easement in favor of the other Condominiums to use and maintain, the pipes, ducts, cables, wires, conduits, public utility lines and other similar Common Elements of such Condominiums.

6.3 Sponsor's Easement for Construction and Marketing Activities.

(a) Sponsor, and any contractors, subcontractors, agents and employees of Sponsor shall have an easement over, through and under the Property as necessary for the construction of all or any portion of the Units, the Common Elements, the Recreational Facilities and/or any of the improvements constituting a part of any of the foregoing and, in connection with such easements, the right to maintain, during the period of construction and sale of Units or other improvements, upon such portion of the Property as any such person deems necessary, such facilities as, in the sole opinion of any such person may be reasonably required, convenient or incidental to the construction and sale of said Units, Recreational Facilities or other improvements, including, without limitation, a business office, storage area, construction trailers, construction equipment and supplies, construction areas, signs and sales offices.

(b) Each Member hereby grants a right of access to his or her Unit to Sponsor and any contractors, subcontractors, agents, and employees of Sponsor for the purposes of the completion of any installation, construction, modification, alteration, renovation, maintenance, repair, restoration, replacement, or change including, without limitation, the correction of any construction defects being performed or to be performed by or on behalf of Sponsor with respect to the

Property, including, without limitation, the Recreational Facilities, the Common Elements and/or the Units.

6.4 Rights of Access in Favor of the Association. Each Member shall afford to the Association, to the Managing Agent and/or to any other person authorized by any of the foregoing a right of access to his or her Unit for the purposes of: (a) making inspections of, or removing violations noted or issued by any governmental authority against such Unit, any of the Condominiums, the Common Elements, the Recreational Facilities and/or any other Unit; (b) curing defaults hereunder, or violations of the Rules and Regulations committed by such Member; (c) correcting any conditions originating in or on his or her Unit and threatening another Unit or all or any portion of the Common Elements or the Recreational Facilities; (d) installing, operating, maintaining, repairing, altering, rebuilding, restoring and/or replacing any improvement located in, over, under, through, adjacent to, or upon the Property; (e) correcting any condition that violates the provisions of any mortgage encumbering another Unit and/or (f) carrying out any of the Associations other obligations under the Declaration or the By-Laws.

6.5 Easements for Repair. The Board, Managing Agent, if any, any manager or employee of the Association and any other person authorized by any of the foregoing, shall have, and the Recreational Facilities and Common Elements shall be subject to, an easement in, to and through the Recreational Facilities and Common Elements or any portion of any of the foregoing, in favor of the foregoing persons, (a) to operate, maintain, repair, alter, rebuild, restore and replace the Recreational Facilities and/or the Common Areas to the extent set forth in the By-Laws, including, without limitation, the maintenance of the sign identifying the Community located at the entrance thereto and any advertising and/or directional signs and (b) to perform any of their respective duties in accordance with the By-Laws.

6.6 Future Easements. Any other easements in, to or under the Property which do not require the payment of money by any Member, which Sponsor shall deem necessary for the benefit of the Association and its Members may be created by Declarant pursuant to a duly filed amendment to this Declaration and/or Sponsor may execute on behalf of the Association, and shall have the right to cause the Board to execute ,any agreements required in connection therewith.

7. Section 2(c) of Article VI of the Declaration and Article XVII of the By-Laws are hereby amended to provide that so long as the Sponsor shall be a Member of the Association by virtue of its ownership of any Unsold Unit, no amendment to the Declaration or the By-Laws shall be effective without the prior written consent of the Sponsor or its designee.

8. Section 2(c)(ii) of Article VI of the Declaration is hereby amended to provide that no amendment, modification. addition or deletion to the provisions of the of the

Declaration which adversely impacts or otherwise prejudices the rights or priorities of any Permitted Mortgagee, shall be effective without the written consent (which consent shall not be unreasonably withheld or delayed) of such Permitted Mortgage.

9. Section 2(c) of Article VI of the Declaration is hereby further amended to provide that no amendment to the Declaration that abridges, modifies, suspends, eliminates or otherwise adversely affects any right, power, easement, privilege or benefit of the Association or its Board shall be effective without the prior written consent of 80% of the Members of the Association.

10. A new Article VII, entitled "Sponsor's Right To Change Site Plan" is hereby added to the Declaration. This new Article provides as follows:

10.1 Right to Change Site Plan. Sponsor hereby reserves the right to make minor revisions of boundary lines and road lines from those shown on the Site Plan in order to preserve the natural topography of all or any portion of the Property and to adjust the size of the Recreational Facilities and/or the Common Elements of any or all of the Condominiums to accommodate the improvements on all or any portion of the Property, now or hereafter constructed. The rights reserved to Sponsor hereunder shall include, but not be limited to, the right (i) to change, in an insubstantial manner, the size and/or location of the Common Elements and/or Recreational Facilities; and (ii) to change, in an insubstantial manner, the location of a road or roads.

10.2 Procedure to Change Site Plan. The Association hereby consents (and the deed conveying the Recreational Facilities to the Association may similarly provide) that the Site Plan may be amended to effectuate any of the provisions contained in Section 10.1 above without any further covenants and that the Association will, if requested, execute, acknowledge and deliver, without charge, a deed or deeds re-conveying to the appropriate party any land theretofore conveyed to the Association, so that a revision or correction deed or deeds conforming to an amended Site Plan may be delivered. The acceptance of a deed conveying a Unit shall be deemed a consent by such Unit Owner to any future amendment or amendments of the Site Plan for the above purposes and a covenant that such Owner will, nevertheless, if requested, execute, acknowledge and deliver, without charge, any written consent to such amendment or amendments of the Site Plan. In addition and if requested, the Condominiums shall execute, acknowledge and deliver without charge, a deed or deeds re-conveying to Sponsor and/or the Association any land theretofore conveyed so that a revision or correction deed or deeds conforming to an amended Site Plan may be delivered. Irrespective of the foregoing, the recording by or on behalf of Sponsor of an amended Site Plan to delineate any or all of the changes provided for in this Article shall be deemed a modification of any prior instruments whereby Sponsor conveyed title to any or all of the Property to the Association and/or any of the Condominiums.

11. A new Article VIII entitled "Encroachments" is hereby added to the Declaration. This new Article provides as follows:

If (a) any portion of the improvements now or hereafter located upon or comprising any portion of the Common Elements encroaches upon any portion of the Recreational Facilities, (b) any portion of the Recreational Facilities encroaches upon any portion of the improvements now or hereafter located upon or comprising any portion of the Common Elements, (c) any portion of the Common Element of one of the Condominiums encroaches upon any portion of one or more of the other Condominiums or (d) any such encroachment shall hereafter occur as a result of (i) settling or shifting of any of the improvements now or hereafter located upon any portion of the Property (including, without limitation, any of the Units) or (ii) any permitted alteration, repair or restoration of any of the improvements now or hereafter located upon any portion of the Property (including, without limitation, any of the Units) then, in any such event, a valid easement shall exist for such encroachment and for the maintenance of the same as long as such improvements shall exist.

12. A new Article IX entitled "Architectural Control" is hereby added to the Declaration. This new Article provides as follows:

No building, deck, wall or other structure or improvement, change or alteration to the exterior of the Units or to the Common Elements of any of the Condominiums (including, without limitation, the landscaping) of whatsoever nature shall be commenced, erected or maintained, nor shall any exterior addition to or change (including, without limitation, change in color, texture, or any addition or removal of any gardens, shrubbery or trees on any portion of such Common Elements) or alteration thereto be made until the plans and specifications showing the nature, kind, shape, height, dimensions, materials, color and locations of the same shall have been submitted to and approved, in writing, as to harmony of external design and location in relation to surrounding structures and topography by a majority of the Board or by a majority of an architectural committee composed of three or more representatives appointed by the Board. In the event the Board or its designated committee fails to approve or disapprove such design and location within sixty (60) days after said plans and specifications and all other information requested have been submitted to it, approval will not be required and this Article will be deemed to have been fully complied with. The provisions of this paragraph shall not apply to Sponsor.

13. Article III of the By-Laws is hereby amended to provide that an additional purpose of the Association is to operate, manage, repair and maintain the Common Areas, provided, however, that the Condominiums, and not the Association, shall operate, manage, repair and maintain all other areas comprising their respective Common Elements, including, without limitation, all buildings, any foundations, columns, girders, beams, supports or bearing walls of the Units,

any portion of the exterior walls or walls and partitions dividing the Units from other Units, and any terraces, decks, porches and exterior stairs. In addition, the Association's Board, by a majority vote, may require any of the Condominiums to perform such maintenance, repairs and/or replacements for which such Condominium otherwise would be responsible and which, in the reasonable discretion of such Board, is required for the continued aesthetics and/or the health, safety and/or welfare of the Community as a whole or to bring such Condominium up to the standards of the balance of the Community and, upon the failure of such Condominium to perform such maintenance, repair and/or replacement, the Association may (but shall not be obligated to) perform the same on behalf of such Condominium, in which event the reasonable cost thereof shall be reimbursed by such Condominium upon demand therefor.

14. Article IV of the By-Laws is hereby amended to provide that the By-Laws are also applicable to the Common Areas and to the use and occupancy thereof and that the use of same by any persons shall be subject to the Declaration, the By-Laws and the Rules and Regulations of the Association.

15. Section 11 of Article VII of the By-Laws is hereby amended to provide that when a quorum is present at any meeting, the vote of a majority of all Members in person or represented by written proxy shall decide any question brought before such meeting which affects the Members and such vote shall be binding on all Members.

16. Section 2 of Article VIII of the By-Laws is hereby amended to provide that, except as set forth in Section 3 of Article VIII, the Board shall consist of seven (7) directors.

17. Sections 3(b), (c), (d) and (e) of Article VIII of the By-Laws are hereby deleted and replaced with the following provisions:

17.1 From and after the holding of the first annual meeting of Members, the Board shall consist of one (1) member of each of the Boards of Managers of Scarborough Glen Condominiums I, II and III, three (3) members of the Board of Managers of Scarborough Glen Condominium IV and a seventh member who shall be elected by the Members at large. At a special meeting of the Members to be held within thirty (30) days following the first annual Unit Owners meeting of Scarborough Glen Condominium IV, and at each subsequent annual meeting of the Members thereafter, the seventh member shall be elected to the Board by the Members at large in the manner prescribed under these By-Laws. Until the first annual Unit Owners meeting of Scarborough Glen Condominium IV, the Board shall consist of one (1) member of each of the Boards of Managers of Scarborough Glen Condominiums I, II and III. The Boards of Managers of the Condominiums shall each elect which of their members shall serve as director on the Board of Directors and such managers shall serve as Board members for the

same terms to which they have been elected to the Board of Managers of the respective Condominium.

17.2 Anything in these By-Laws to the contrary notwithstanding, the Sponsor shall be entitled to designate a majority of the Board of Directors until the closing of title to the 122nd Unit in the Development has occurred; provided, however, that the Sponsor may not control the Board of Directors for more than ten (10) years after the date of the closing of the first Unit. So long as the Sponsor remains in control of the Board, the Boards of Managers of Scarborough Glen Condominiums I, II and III shall each be entitled to designate one (1) manager (other than the Sponsor) to serve on the Board of Directors and the Sponsor shall be entitled to designate four (4) directors. After its first annual Unit Owners meeting, the Board of Managers of Scarborough Glen Condominium IV, as and when elected, also shall be entitled to designate one (1) manager (other than Sponsor) to serve on the Board of Directors, at which time, the Sponsor, provided it remains in control of the Board, shall be entitled to designate an additional director in order to maintain control of the Board. As long as there is at least one Unsold Unit, the Sponsor shall have the right to designate a minority (i.e. one less than a majority) of the members of the Board. So long as the Sponsor shall retain control of the Board or otherwise designate a minority of the members thereof, no seventh member shall be elected from the Members at large.

18 Section 5 of Article VIII of the By-Laws is hereby amended to provide that if any such vacancy is created by the one member of the Board elected at large by the Association Members, then, in such event, a special meeting of the Members shall be called promptly after the occurrence of such vacancy for the purpose of electing a replacement who shall continue as a member of the Board until the next annual meeting of Members when a successor shall be elected.

19. Article IX of the By-Laws is hereby amended to provide as follows:

19.1 The Board shall have all of the same powers and duties set forth in these By-Laws and all of the same powers of the Boards of Managers of the Condominiums under their respective Condominium Documents with respect to the Association's operation, management, repair and maintenance of the Common Areas.

19.2 In the event that any painting, maintenance, repairs and/or replacements to the Recreational Facilities or the Common Areas or any part of either of the foregoing is necessitated by the negligence, misuse or neglect of any Member, the entire cost and expense thereof shall be borne by such Member, except to the extent such cost is covered by the proceeds of any insurance maintained pursuant to the provisions hereof.

19.3 All portions of the Recreational Facilities and the Common Elements of the Condominiums shall be kept in first-class condition. The Board shall promptly make or perform, or cause to be made or performed, all maintenance

work, repairs and replacements necessary in connection with the Recreational Facilities and the Common Areas and the boards of managers of the Condominiums shall promptly make or perform, or cause to be made or performed, all maintenance work, repairs and replacements necessary in connection with the balance of the Common Elements of their respective Condominium.

19.4 Should any Unit Owner or Condominium Board of Managers refuse or fail to perform any repair, replacement or maintenance which such Unit Owner or Board of Managers shall be obligated to perform under the Declaration, these By-Laws or the Rules and Regulations of the Association, said repair, replacement or maintenance may then be performed by the Board on behalf of such Unit Owner or Board of Managers and the cost thereof shall be charged to such Owner or Board of Managers, as the case may be. Any such charge to a Unit Owner, together with any reasonable attorneys' fees incurred in connection therewith, shall become a lien on such on such Unit Owner's Unit in accordance with the terms of these By-Laws. Any such charge to a Condominium's Board of Managers shall be apportioned among the Units in such Condominium based on each Unit Owner's percentage interest in the Common Elements thereof and the amount thereby attributed to each Unit shall become a lien against such Unit in accordance with the terms of these By-Laws.

20. Article X of the By-Laws is hereby amended as follows:

20.1Section 2(c) is hereby deleted.

20.2 Section 3 is hereby amended to provide that all Members shall be obligated to pay Association Charges assessed by the Board pursuant to the provisions hereof at such time or times (but not less than monthly) as the Board determines. Unless otherwise determined by the Board, Association Charges shall be payable monthly, in advance, on the first day of each month.

20.3 Section 4 is hereby amended to provide that the Association Expenses shall be determined by the Board and shall be allocated and assessed to and borne by the Members, in equal shares. Sections 4(a), (b) and (e) are hereby deleted.

20.4 Section 6 is hereby amended to provide that in the event any Member fails to make timely payment of Association Charges, the Member shall be obligated to pay, in additional to all other charges provided herein and in the Declaration, all expenses, including, without limitation, attorneys' fees paid or incurred by the Board or by any managing agent in connection with the collection of Association Charges, including, without limitation, the commencement and prosecution of any proceeding brought to collect such unpaid Association Charges or any action to foreclose the lien on such Member's Unit arising from said unpaid Association Charges in the manner permitted by applicable Law. All such charges, interest

and expenses shall be added to and shall constitute Association Charges payable by such Member.

21. Article XII of the By-Laws is hereby amended to provide as follows:

The Rules and Regulations set forth in the Condominium Documents shall constitute the Rules and Regulations of the Association and shall be equally applicable to the Recreational Facilities and the Board shall have sole authority with respect to the supervision and enforcement of such Rules and Regulations regarding the use of the Recreation Facilities and the Common Elements of the Condominiums. The Board also may from time to time modify, amend or add to such Rules and Regulations except that (a) a majority of Members may overrule the Board with respect to any such modification, amendment or addition and (b) no modification, amendment or addition affecting any Unsold Unit may be made unless agreed to by Sponsor or its designee. Copies of any newly adopted, or any modifications, amendments or additions to the Rules and Regulations shall be furnished by the Board to each Member not less than 20 days prior to the effective date thereof.

22. Article XIII of the By-Laws is hereby amended by adding the following provisions:

22.1 The provisions in the Condominium Documents regarding insurance to be carried by the Condominiums are hereby incorporated by reference as if set forth at length herein, except that the Board shall be required to obtain and maintain, to the extent obtainable and to the extent determined by the Board to be appropriate, all such insurance and the Board shall undertake and perform all of the responsibilities and obligations of the respective Boards of Managers of the Condominiums under the Condominium Documents with respect to such insurance and the cost of all such insurance shall constitute an Association Expense and shall be borne equally by the Members.

22.2 The provisions in the Condominium Documents regarding repair or reconstruction of the Units after a fire or other casualty are hereby incorporated by reference as if set forth at length herein, except that the Board shall undertake and perform all of the responsibilities and obligations of the respective Boards of Managers of the Condominium under the Condominium Documents with respect thereto, unless seventy-five (75%) percent or more of the Units are destroyed or substantially damaged and 75% or more of the Members do not duly and promptly resolve to proceed with repair or restoration thereof, in which latter event the Condominiums shall be subject to an action or actions for partition as provided in the Condominium Documents.

23. Article XIV of the By-Laws is hereby amended to provide as follows:

The Board or the managing agent for the Association, if any, shall keep detailed records of the actions of the Board, minutes of the meetings of the Board, minutes of the meetings of the Members, and financial records and books of account with respect to the activities of the Board, including a listing of all receipts and expenditures. In addition, the Board shall keep a separate account for each Unit which, among other things, shall contain the amount of each assessment of Association Charges and other amounts required by the Board to be paid in respect of each such Unit, the date when due, the amounts paid thereon and the balance, if any, remaining unpaid.

The Declaration, the By-Laws and the Rule and Regulations in all other respects, shall remain in full force and effect.

All capitalized terms used but not defined herein shall have the respective meaning ascribed to such term in the Declaration or the By-Laws, as the case may be, unless the context clearly requires otherwise.

IN WITNESS WHEREOF, the Declarant has caused this First Amendment to be executed this 15th day of January, 2001.

GINSBURG DEVELOPMENT, L.L.C.
By: _____
Martin Ginsburg, Managing Member

STATE OF NEW YORK)
COUNTY OF WESTCHESTER) s.s.:

On the 15th day of January, 2001 before me, the undersigned, a notary public in and for said state, personally appeared MARTIN GINSBURG, personally known to me or proved to me on the basis of satisfactory evidence to be the individual whose name is subscribed to the within instrument, and acknowledged to me that he executed the same in his capacity, and that by his signature on the instrument said individual executed the said instrument.

_____
Notary Public
My Commission Expires:

MARK D. GINSBURG
Notary Public, State of New York
No. 02GI4906840
Qualified in Westchester County
Commission Expires August 31, 2001

CHARLES RILEY
LAND SURVEYOR
LAND PLANNER
69 MAIN STREET
TARRYTOWN, N.Y.
10691 • 631~1332
FAX 914~631~1545

MEMBER WESTCHESTER-PUTNAM ASSOCIATION OF PROFESSIONAL LAND SURVEYORS

SCHEDULE A

Jan 10, 2001

SUGGESTED DESCRIPTION
GINSBURG • BRIARCLIFF

All that certain piece or parcel of land, with improvements thereon, located in The Village of Briarcliff Manor, Town of Ossining, County of Westchester and State of New York; said piece or parcel being more particularly described as follows:

BEGINNING at a point on the easterly side of Albany Post Road • South Highland Avenue at the dividing line between land now or formerly of Wyer Associates on the south and the herein described premises on the north; running thence along the easterly side of Albany Post Road • South Highland Avenue N. 17 deg. 46' 00• E., a distance of 90.00 feet and N. 16 deg. 33' 30• E., a distance of 25.01 feet to land now or formerly of 265 South Highland Avenue. Inc.; running thence along the last mentioned and continuing along lands now or formerly of Zymet and lands nor or formerly of Anello the following four (4) courses and distances:
1. S. 75 deg. 13' 30• E., a distance of 160.08 feet,
2. N. 16 deg. 33' 30• E., a distance of 214.92 feet,
3. S. 73 deg. 26' 30• E., a distance of 36.20 and
4. N. 16 deg. 33' 30• E., a distance of 100.00 feet to the southerly side of Schuman Court as shown on Filed Map No. 14072; running thence along the last mentioned in the arc of a curve to the left having a radius of 260.00 feet, a distance of 192.00 feet; running thence over and across Schuman Court N. 56 deg. 45' 40• W., a distance of 50.75 feet and N. 16 deg. 33' 30• E., a distance of 23.86 feet to land now or formerly of Coastal Machinery Sales Co., Inc.; running thence along the last mentioned N. 16 deg. 33' 30• E., a distance of 446.35 feet to land now or formerly of High Meadow Cooperative No. 1; running thence along the last mentioned S. 69 deg. 39' 10• E., a distance of 131.10 feet to land now or formerly of Millar; running thence along the last mentioned the following four (4) courses and distances.
1. S. 31 deg. 13' 00• W., a distance of 100.00 feet,
2. S. 69 deg. 39' 10• E., a distance of 18.88 feet,
3. S. 67 deg. 46' 10• E., a distance of 181.12 and
4. N. 31 deg. 13' 00• E., a distance of 100.00 feet to land now or formerly of High Meadow Cooperative No. 1; running thence along the last mentioned and continuing along land now or formerly of Jefferson House Association S. 67 deg. 46' 10• E., a distance of 16.88 feet and S. 69 deg. 23' 10• E., a distance of 293.77 feet to land now or formerly of Taconic State Park Commission (Old Croton Aqueduct); running thence along the last mentioned the following six (6) courses and distances.

SCHEDULE A (Continued)

1. S. 8 deg. 31' 40" W., a distance of 1,741.01 feet,
2. N. 81 deg. 28' 20" W., a distance of 17.00 feet,
3. S. 8 deg. 31' 40" W., a distance of 100.26 feet,
4. S. 78 deg. 54' 40" W., a distance of 16.99 feet,
5. S. 19 deg. 59' 20" E., a distance of 33.48 feet and
6. S. 8 deg. 31' 40" W., a distance of 127.15 feet to land now or formerly of Gilbertson; running thence along the last mentioned, N. 72 deg. 40' 40" W., a distance of 676.95 feet to land now or formerly of Tetko; running thence along the last mentioned, N. 17 deg. 42' 00" E., a distance of 850.00 feet and N. 72 deg. 55' 00" W., a distance of 352.50 feet to land now or formerly of Wyer Associates; running thence along the last mentioned N. 17 deg. 46' 00" E., a distance 217.65 feet, N. 72 deg. 14' 00" W., a distance of 197.50 feet and in the arc of a curve to the left having a radius of 25.00 feet, a distance of 39.27 feet to the point or place of beginning.

SCHEDULE B

6/9/00

GINSBERG DEVELOPMENT, L.L.C.
SUGGESTED DESCRIPTIONS

RECREATION PARCEL
All that certain piece or parcel of land located in The Village of Briarcliff Manor, Town of Ossining, Westchester County, N.Y.; said piece or parcel being more particularly described as follows:

BEGINNING at a point on the easterly side of Albany Post Road • South Highland Avenue at the dividing line between Wyer Associates on the south and land of Ginsberg Development, L.L.C. on the north; running thence along the last mentioned dividing line in the arc of a curve to the right having a radius of 25.00 feet, a distance of 39.27 feet and S. 72 deg. 14' 00• E., ; a distance of 197.50 feet; running thence over and across land of Ginsberg Development, L.L.C. in the arc of a curve to the left having a radius of 350.00 feet, a distance of 127.69 feet to the true point of beginning; running thence over and across land of Ginsberg Development, L.L.C. the following seven (7) courses and distances:

1. in the arc of a curve to the left having a radius of 350.00 feet, a distance of 83.06 feet,
2. N. 34 deg. 43' 10• E., a distance of 52.55 feet,
3. S. 70 deg. 06' 00• E., a distance of 137.14 feet,
4. S. 27 deg. 21' 00• W., a distance of 109.21 feet,
5. In the arc of a curve to the right having a radius of 20.00 feet, a distance of 28.51 feet,
6. In the arc of a curve to the left having a radius of 50.00 feet, a distance of 67.67 feet and
7. N. 49 deg. 14' 00• W., a distance of 106.19 feet to the true point or place of beginning.